

25STCV32583 25STCV32583

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Case Number: 25STCV32583 Hearing Date: July 29, 2026 Dept: 407

Judge Brock T. Hammond, Department 407

HEARING DATE: July

29, 2026 TRIAL

DATE: Not set

CASE: Margarita Arakelian

v. Does 1 through 20, inclusive

CASE NO.: 25STCV32583

(2)

MOTION FOR LIMITED-EXPEDITED DISCOVERY

MOVING PARTY: Plaintiff

Margarita Arakelian

RESPONDING PARTY: Meta Platforms,

Inc.

I. BACKGROUND

On November 7, 2025, Plaintiff Margarita Arakelian filed a Complaint against Does 1 through 20 (collectively, "Defendants"). On December 15, 2025, Plaintiff filed the operative First Amended Complaint against Defendants for (1) Invasion of Privacy, (2) Unauthorized Access to Computers in Violation of California Penal Code § 502, et seq., (3) Conversion, (4) Identity Theft in Violation of California Penal Code § 530.5, and (5) Declaratory

and Injunctive Relief. No doe amendments have been filed and no defendants have appeared.

On April 15, 2026, Plaintiff filed a motion for limited-expedited discovery as to non-party Verizon Wireless ("Motion No. 1").

On June 23, 2026, Plaintiff filed a motion for limited-expedited discovery as to non-parties Cox Communications, Inc., Instagram, LLC and Verizon Wireless ("Motion No. 2").

As of July 24, 2026, no oppositions have been filed to either motion.

II. LEGAL STANDARD

"Subject to Sections 2025.270 and 2025.610, an oral deposition may be taken as follows:...(b) The plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant. On motion with or without notice, the court, for good cause shown, may grant to a plaintiff leave to serve a deposition notice on an earlier date." (Code of Civ. Proc., §2025.210, subd. (b).) The 20-day "hold" on service of deposition notices by a plaintiff applies to all discovery by deposition, including business records subpoenas to nonparties. (California Shellfish Inc. v. United Shellfish Co. (1997) 56 Cal.App.4th 16, 20 (deposition hold applies to deposition subpoena seeking business records and trial court properly quashed subpoenas served by plaintiff before any service of the complaint and summons on any defendant).)

III. DISCUSSION

A. Motion No. 1

Motion No. 1 is only directed as to Non-Party Deponent Verizon Wireless ("Verizon"). (Notice, 2:4-7.) According to the Notice of Motion, Plaintiff requests "leave to engage in early discovery against" Verizon. (Id. at 2:6-7). However, based on the points and authorities and declaration of counsel, Plaintiff propounded a deposition subpoena on Verizon

on January 12, 2026 seeking information identifying information for specified “users, customers, subscribers, or accounts” identified in Exhibit A to the subpoena (“1/12/26 Subpoena”). (Atrizadeh Dec., Ex. A.) Counsel states that non-party deponent failed or refused to comply with the subpoena absent a formal court order. (Id. at ¶15.)

Plaintiff

served a deposition subpoena on Verizon before any defendant appeared and before service of summons on any defendant.

The 1/12/26 Subpoena was therefore served in violation of the “hold” on depositions under Code of Civil Procedure section 2025.210 subdivision

(b). Under section 2025.210 subdivision

(b), a “plaintiff may serve a deposition notice without leave of court on any

date that is 20 days after the service of summons on, or appearance by, any defendant. On motion with or without notice, the court,

for good cause shown, may grant to a plaintiff leave to serve a deposition notice on an earlier date.” (Code of

Civ. Proc, §2025.210, subd. (b).) Plaintiff

did not file a motion seeking leave before serving the 1/12/26 Subpoena.

For

that reason, Plaintiff’s motion cannot seek compliance with the 1/12/26

subpoena. Plaintiff’s motion can only

seek leave to propound the same deposition subpoena on Verizon. Plaintiff’s motion also does not entitle

Plaintiff to any findings as to Verizon’s obligation to respond. The available relief is limited solely to

leave to serve discovery before expiration of the “hold” set forth under Code

of Civil Procedure section 2025.210. The

proposed order submitted by Plaintiff is consistent with this limited

relief. (Proposed Order Submitted on

4/15/26.)

The

Court notes that Verizon raised Code of Civil Procedure section 1985.3 as

grounds to refuse compliance with the deposition subpoena. (Atrizadeh Dec., Ex. B.) Section 1985.3 subdivision (b) requires that

the individual consumer be served with the subpoena, the affidavit in support

of the subpoena and the consumer notice described in subdivision (e). Plaintiff attempted to comply with section

1985.3 by attaching a Notice to Consumer on mandatory Judicial Council Form

SUBP-025 to the 1/12/26 Subpoena.

(Atrizadeh Dec., Ex. A, Notice to Consumer.) Plaintiff’s Notice to Consumer is addressed

to “Consumers.” Such a notice would not

comply with section 1985.3, nor is it clear that Plaintiff could comply with Section 1985.3 subdivision (b) and (e), given that the defendants' identities are unknown. Subdivision (h) provides, "[u]pon good cause shown and provided that the rights of witnesses and consumers are preserved, a subpoenaing party shall be entitled to obtain an order...waiving the requirements of subdivision (b) where due diligence by the subpoenaing party has been shown." (Code of Civ. Proc., §1985.3, subd. (h).) Plaintiff has not made any request for waiver under subdivision (h).

Plaintiff is only seeking leave to serve discovery at this time. However, Plaintiff does not address whether she can serve a valid deposition subpoena in light of section 1985.3 subdivision (b). Plaintiff's ability to serve a valid deposition subpoena on Verizon is a valid consideration in determining the existence of good cause.

More importantly, after reviewing the moving papers, the court finds Plaintiff has not demonstrated good cause for leave to serve discovery on Verizon before the expiration of the 20-day hold in subdivision (b) of section 2025.210 of the Code of Civil Procedure. Plaintiff needs information to identify and locate the Doe Defendants in this action. However, Plaintiff does not refer to Verizon in her FAC, nor is the relevance of Verizon explained in the supporting declarations or the memorandum of points and authorities. Plaintiff's motion for leave to serve expedited discovery is denied.

B. Motion No. 2

Motion No. 2 is directed at Cox Communications, Inc. ("Cox"), Instagram, LLC ("Instagram") and Verizon Wireless ("Verizon"). In the Notice of Motion for Motion No. 2, Plaintiff explicitly states that she only "seeks permission to serve or re-serve subpoenas and request limited identifying information subject to any applicable provider notice procedure, privacy objection, Stored Communications Act limitation, First Amendment safeguard, or motion to quash." (Notice, 2:14-17.) Plaintiff "does not ask the Court to require immediate production from Non-party Deponents." (Id. at 2:12-13.)

The same concerns regarding Plaintiff's ability to satisfy the requirements of Code

of Civil Procedure section 1985.3 subdivisions (b) and (e) exist as to deposition subpoenas proposed by Motion No. 2.

Plaintiff does not address whether a valid deposition subpoena can be served on Cox, Verizon or Instagram given the requirements of Code of Civil Procedure section 1985.3's requirements.

In

addition, Plaintiff's Motion No. 2 still fails to explain the relevance of Verizon to identification of the DOE defendants. Plaintiff's Motion No. 2 also fails to explain the relevance of Cox to Plaintiff's identification of DOE defendants. The FAC also does not mention Cox. Counsel's declaration that these entities "should have identifiable information" is insufficient to establish good cause. Counsel fails to explain why they should have identifiable information.

However,

Plaintiff alleges that her Instagram account was accessed without her permission on multiple occasions by unknown and unauthorized users. (FAC, ¶¶20-22.) Plaintiff therefore establishes good cause

for leave to propound expedited discovery on Instagram. Plaintiff cannot reasonably ascertain the identity of the unauthorized users by other means.

Meta

Platforms, Inc. filed a response on July 16, 2026 arguing that Motion No. 2 must be denied as redundant and moot based on the court's April 8, 2026 order granting Plaintiff's Motion for Limited-Expedited Discovery filed on January 7, 2026 ("1/7/26 Motion"). However, the April 8, 2026 order only allows for limited expedited discovery as to Meta Platforms, Inc. and Google, Inc. The Court's April 8, 2026 order did not state that such discovery was allowed as to Instagram, even though 1/7/26 Motion only sought an order for limited-expedited discovery as to Instagram, LLC and Google, LLC.

Meta was not referenced in the motion, nor has Meta claimed that it and Instagram, LLC are the exact same entity.

Motion No. 2 is therefore not moot as a result of the April 8, 2026 order. Plaintiff has not yet received an order allowing her to conduct limited expedited discovery before expiration of the "hold" on depositions under Code of Civil Procedure section 2025.210 subdivision (b).

Plaintiff's

Motion No. 2 is denied as to Verizon and Cox and granted as to Instagram.

IV. CONCLUSION

Plaintiff's

Motion for Limited-Expedited Discovery filed on April 15, 2026 is DENIED.

Plaintiff's

Motion for Limited-Expedited Discovery filed on June 23, 2026 is DENIED as to Verizon Wireless and Cox Communications, Inc. and GRANTED as to Instagram, LLC.

Plaintiff

is ordered to give notice.

Dated: July 29 , 2026

Brock T. Hammond

Judge of the Superior Court